

SOFTWARE LICENSE AGREEMENT BETWEEN APEX TECHNOLOGIES CORP. AND NOVA INDUSTRIES LLP

Between: **Apex Technologies Corp.** (Licensor) and **Nova Industries LLP** (Licensee)

Effective Date: 2023-09-13

Termination Date: 2026-09-13

Governing Law: the laws of Singapore

1. Severability

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable. The validity and enforceability of the remaining provisions shall not be affected.

2. Indemnification

Apex Technologies Corp. shall indemnify, defend, and hold harmless Nova Industries LLP and its officers, directors, employees, and agents from and against any claims, losses, damages, liabilities, and expenses (including reasonable legal fees) arising out of Apex Technologies Corp.'s breach of this Agreement or gross negligence or wilful misconduct. The indemnifying Party shall have the right to control the defence of any such claim.

3. Force Majeure

Neither Party shall be liable for any failure or delay in performance under this Agreement (other than payment obligations) to the extent caused by circumstances beyond the reasonable control of the affected Party, including but not limited to acts of God, war, terrorism, riots, epidemics, government actions, or internet or telecommunications failures. The affected Party shall promptly notify the other.

3.99. Waiver of Rights

Nova Industries LLP hereby irrevocably waives any and all rights it may have under applicable consumer protection laws, data protection laws, and any other statutory rights to the fullest extent permitted by law. Nova Industries LLP further waives the right to participate in any class action or collective proceeding against Apex Technologies Corp..

4. Payment Terms

Nova Industries LLP shall pay Apex Technologies Corp. a fee of Rs. 1,13,00,000 (Rupees One crore, thirteen lakh Only) for the Services rendered under this Agreement. Payment shall be made within thirty (30) days of receipt of an invoice. All amounts are exclusive of applicable taxes, which shall be borne by Nova Industries LLP. Late payments shall attract interest at the rate of eighteen percent (18%) per annum.

5. Subcontracting

Apex Technologies Corp. shall not subcontract any material part of the Services without the prior written consent of Nova Industries LLP. Where subcontracting is permitted, Apex Technologies Corp. shall remain fully responsible for the performance of the subcontractor and shall ensure the subcontractor is bound by obligations equivalent to those in Clause 1 and Clause 2.

6. Representations and Warranties

Each Party represents and warrants that: (a) it has full power and authority to enter into this Agreement; (b) this Agreement has been duly authorised and constitutes a valid, binding obligation; (c) the execution, delivery, and performance of this Agreement do not violate any applicable law, regulation, or third-party agreement.

7. Termination

Either Party may terminate this Agreement by giving 15 days' written notice to the other Party. Either Party may terminate immediately upon written notice if the other Party commits a material breach that is not cured within thirty (30) days of receipt of written notice of such breach. Upon termination, Nova Industries LLP shall pay for all Services rendered up to the date of termination.

8. Audit Rights

Nova Industries LLP or its authorised representative shall have the right, upon giving fifteen (15) days' written notice, to audit Apex Technologies Corp.'s records relating to the Services and payments under this Agreement. Such audit shall be conducted during normal business hours and shall not unreasonably disrupt Apex Technologies Corp.'s operations. The cost of the audit shall be borne by Nova Industries LLP, unless the audit reveals an overcharge of more than five percent (5%), in which case Apex Technologies Corp. shall bear the cost.

9. Insurance

Apex Technologies Corp. shall, throughout the term of this Agreement, maintain at its own cost: (a) professional indemnity insurance of not less than Rs. 1,13,00,000 (Rupees One crore, thirteen lakh Only) per occurrence; (b) public liability insurance of not less than Rs. 1,13,00,000 (Rupees One crore, thirteen lakh Only) per occurrence; (c) employers' liability insurance as required by applicable law. Apex Technologies Corp. shall provide evidence of such insurance upon request.

10. Amendments

No amendment to this Agreement shall be valid unless made in writing and duly signed by authorised representatives of both Parties. Any waiver of any provision of this Agreement shall be effective only if in writing and shall not be deemed a waiver of any other provision.

11. Notices

All notices under this Agreement shall be in writing and delivered to the addresses set out in Schedule B by registered post, courier, or email with read receipt. Notices shall be deemed received: (a) if by registered post, five (5) days after posting; (b) if by courier, one (1) business day after delivery; (c) if by email, on the day sent, provided no delivery failure notice is received.

IN WITNESS WHEREOF

Licensor

Apex Technologies Corp.

Signature: _____

Name: _____

Title: _____

Date: _____

Licensee

Nova Industries LLP

Signature: _____

Name: _____

Title: _____

Date: _____